

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #02	CCRB Case #: 201802223	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 03/11/2018 4:32 PM	Location of Incident: Sacket Avenue and Williamsbridge Road	18 Mo. SOL 9/11/2019	Precinct: 49		
Date/Time CV Reported Thu, 03/22/2018 11:39 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/22/2018 11:39 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM David Mejia	17053	960928	049 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Jason Carpano	16911	960329	049 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM David Mejia	Abuse: Police Officer David Mejia threatened to arrest § 87(2)(b)			A . Unsubstantiated	
B . POM David Mejia	Abuse: Police Officer David Mejia threatened § 87(2)(b) with the use of force.			B . Unsubstantiated	

Case Summary

On March 22, 2018, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On March 11, 2018, at 4:32 p.m., in the vicinity of Sacket Avenue and Williamsbridge Road, in the Bronx, § 87(2)(b)'s vehicle was pulled over by Police Officer Jason Carpano and Police Officer David Mejia of 49th Precinct for failing to signal lane change (Board Review 01). Police Officer Mejia approached § 87(2)(b)'s vehicle and requested his license and registration. When Police Officer Mejia and Police Officer Carpano returned to their vehicle, § 87(2)(b) exited his vehicle with a pen and notepad, Police Officer Mejia said, "I am going to arrest you right now" (**Allegation A: Abuse of Authority- Threat of arrest-unsubstantiated**) as he pointed his taser at § 87(2)(b) (**Allegation B: Abuse of Authority-Threat of force-unsubstantiated**). § 87(2)(b) was issued summons #§ 87(2)(g) § 87(2)(a) 160.50 and summons #§ 87(2)(g) § 87(2)(a) 160.50 (Board Review 01).

No video footage of this incident was found.

Findings and Recommendations

Allegation A: Abuse of Authority- Police Officer David Mejia threatened to arrest § 87(2)(b)

Allegation B: Abuse of Authority- Police Officer David Mejia threatened with the use of force. § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on April 16, 2018. Police Officer Carpano was interviewed at the CCRB on October 17, 2018. Police Officer Mejia was interviewed at the CCRB on October 18, 2018.

§ 87(2)(b) stated that once his vehicle was pulled over by Police Officer Mejia and Police Officer Carpano, he expressed to them that he was an § 87(2)(b). When Police Officer Mejia told § 87(2)(b) that he did not care, § 87(2)(b) asked Police Officer Mejia for his information. Police Officer Mejia replied, "Just shut up and be quiet," and walked back to his vehicle with Police Officer Carpano. At some point while the officers were seated inside of their vehicle, Police Officer Carpano exited the vehicle and stood on the sidewalk curb behind § 87(2)(b)'s vehicle, and § 87(2)(b) asked Police Officer Carpano for his information. Police Officer Carpano replied, "I don't care if you work for § 87(2)(b) It means nothing to me. I work for NYPD," and returned back inside of the vehicle.

§ 87(2)(b) stated that as the officers sat inside of their vehicle, he looked for a pen and a notepad so that he could write down the vehicle number. Because § 87(2)(b) could not see the officers' vehicle number through his rearview mirror, he opened his door and stood up. § 87(2)(b) never walked towards the officer's vehicle and only stood at his vehicle door. When he got out his vehicle, Police Officer Mejia and Police Officer Carpano exited their vehicle and began running towards him. § 87(2)(b) was not issued any verbal commands by the officers before they exited their vehicle. Police Officer Mejia then grabbed § 87(2)(b)'s left wrist and

said, “I am going to arrest you right now.” When Police Officer Mejia grabbed § 87(2)(b) s left wrist, he had his taser in his opposite hand.

Police Officer Carpano stated that when he and Police Officer Mejia went back to their vehicle to conduct checks on § 87(2)(b) s license, § 87(2)(b) exited his vehicle with a black book bag. Police Officer Mejia in response grabbed the microphone and said, “Sir, remain in your vehicle” approximately three times. § 87(2)(b) continued digging in his book bag and so both Police Officer Mejia and Police Officer Carpano exited their vehicle because this was alarming to them. Police Officer Carpano did not exit his vehicle at any time before this. He stated that at some point § 87(2)(b) retrieved a pen from his book bag, but he could not recall if § 87(2)(b) retrieved this pen before or after he and Police Officer Mejia had exited their vehicle. As officers approached § 87(2)(b) § 87(2)(b) motioned like he was going to sit back inside of his vehicle. Police Officer Mejia grabbed the wrist that § 87(2)(b) held the pen in, and removed his taser with his left hand. When Police Officer Mejia removed the taser, he held it at a 45 degree angle downwards, but towards § 87(2)(b) who was standing in front of him. Police Officer Carpano did not hear Police Officer Mejia tell § 87(2)(b) that he would be arrested or hear Police Officer Mejia make any statement to § 87(2)(b) when he removed the taser.

Police Officer Mejia’s account was § 87(2)(g) that as they sat in their vehicle, § 87(2)(b) exited his vehicle carrying a book bag, and removed a pen from his book bag. This book bag was blocking what § 87(2)(b) was doing with the pen, and Police Officer Mejia could not remember if he had anything to write with. He also did not see § 87(2)(b) writing down any information with this pen. Police Officer Mejia instructed § 87(2)(b) to return inside of his vehicle multiple times over the loud speaker and each time, § 87(2)(b) refused to get back into his vehicle and at one point said, “What are you going to do? Arrest me?” Police Officer Carpano and Police Officer Mejia then exited their vehicle and approached the driver’s side of § 87(2)(b) s vehicle. When they did so, § 87(2)(b) attempted to go back into his vehicle and Police Officer Mejia removed his taser. Police Officer Mejia stated that he drew his taser and pointed at § 87(2)(b) when he tried to go back into his vehicle for safety reasons being that officers did not know what was in his book bag, and because he attempted to get back into the vehicle and did not know if he would reach for a weapon. Police Officer Mejia stated to the CCRB that as a safety measure § 87(2)(b) needed to be removed from his vehicle because he and Police Officer Carpano could not see what he was doing inside of his book bag, and they did not know if he had any weapons on him. § 87(2)(b) also needed to be removed because officers did not know why he exited the vehicle in the first place, the fact that Police Officer Mejia could not see § 87(2)(b) s right hand, and because § 87(2)(b) was already being verbally aggressive and refused to obey officer’s commands.

Police Officer Mejia told § 87(2)(b) to get out the car and grabbed § 87(2)(b) by the arm. Police Officer Mejia could not recall how § 87(2)(b) was removed from the vehicle but believed he grabbed him by one hand and guided him out of the vehicle. When he did so, § 87(2)(b) exited the vehicle. Police Officer Mejia did not make any additional physical contact with § 87(2)(b) besides grabbing his arm to remove him from the vehicle. Police Officer Mejia did not holster his taser until § 87(2)(b) had his hands on the roof of his vehicle. At that

point there was no probable cause to arrest § 87(2)(b) and Police Officer Mejia denied telling him that he would arrest him.

According to NYPD Patrol Guide 221-08, pointing a taser at a subject may be used by officers to gain voluntary compliance (Board Review 02).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED] It is
therefore recommended that **Allegation A** be *Unsubstantiated*.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is
therefore recommended that **Allegation B** be *Unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- Police Officer Mejia has been a member of service for two years and has been a subject in one other CCRB complaint and one allegation. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation and he agreed to mediate this complaint. This case was sent to the Mediation Unit on June 5, 2018, but was returned on August 23, 2018, after mediation was rejected by the subject officer.
- As of December 6, 2018, no Notice of Claim has been filed in regard to this incident (Board Review 04).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad No.: _____02_____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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